

GZ: 2021-0.698.184 of October 8, 2021 (Procedure Number DSB-D123.774)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The

Data Protection Authority

decides

on

the

data protection complaint

of

Franz A***

(complainant) dated November 13, 2018 against N*** Marketing GmbH (respondent), represented by B*** & C*** Attorneys-at-Law, regarding the violation of the right to confidentiality as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 6, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1;

Sections 1, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999

as amended; Sections 9, 10 Federal Act on Special Civil Law Provisions for Companies (Commercial Code – UGB), dRGBI. p. 219/1897 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. In an introductory submission dated November 13, 2018, the complainant asserted a violation of the right to confidentiality and stated the following in this regard:

It appears that the website www.n***.at processes personal data on a large scale.

At least the name of the complainant was used on the aforementioned website without a contract with the respondent being in place. Furthermore, no legitimate interest of the respondent could be identified that would justify the publication of the complainant's name on the internet in a generally accessible manner. Screenshots of the website in question were attached to the complaint.

2. In a statement dated December 3, 2018 (supplemented upon request on January 10, 2019), the respondent, represented by B*** & C*** Attorneys-at-Law, submitted the following, as far as relevant to the proceedings:

The respondent offers its services on the platform www.n***.at. As part of the free service, which ultimately represents a marketing activity for its own services, the respondent enables internet research on existing companies and legal entities registered in the commercial register. In the course of the research, internet users have the opportunity to easily search for a legal entity registered in the commercial register to learn about any ownership relationships, as well as to determine with which other legal entities a natural person holds a representative function. However, a direct inquiry about the person is not possible.

Since the exercise of this commercial activity would not be meaningful without the collection, storage, and transfer of data, it must also be assumed that the legislator has a legitimate interest that outweighs the interests of the affected parties in certain categories of cases. The legitimate interest of the respondent, within the framework of its business license, is to provide the published (commercial register) data, including the links with names and first names as well as functions as managing directors and shareholders of registered legal entities, to the users of the website as interesting and

useful data.

Since different companies also advertise on the platform, it is also in the interest of the respondent to generate as many users of the website as possible through interesting information provided there, in order to have as high a number of visitors on the website as possible, thereby generating advertising revenue. These advertising revenues constitute a part of the respondent's revenue.

Data of the complainant can only be accessed by entering a legal entity that is registered in the commercial register.

According to Section 9 para. 1 UGB, everyone is entitled to inspect the commercial register, and there are no restrictions on access. The commercial register also enjoys publicity in the sense of Section 15 UGB and is also a "list of persons with links" in the commercial register accessible to the public. It is generally known that such company data, thus facts that are subject to registration and publication obligations and are accessible in the commercial register, as well as data published in the Edict Data and the Wiener Zeitung in accordance with Section 10 para. 1 UGB, can be processed further by third parties, including the respondent. For example, the Bar Association also offers its members access to ****-Info as a service. This even provides extended functionality compared to the service of the respondent.

4. In a submission dated January 20, 2019, the complainant objected that the economic interests of the respondent could not be the reason for the publication of the complainant's data on the internet, accessible to everyone. An economic advantage cannot outweigh the interest in confidentiality. The commercial register has a statutory mandate compared to the respondent and cannot be accessed for free on the internet by everyone. Furthermore, there are no links to other companies in the commercial register.

4. In a submission dated December 15, 2020, the respondent, represented by B*** & C*** Attorneys-at-Law, summarized as follows:

The D*** Economic Information Service Ltd. ("D****") has a valid contract with the Federal Ministry of Justice ("BMJ") based on § 5 para 3 no. 3 in conjunction with § 8 of the Information Reuse Act (IWG). Documents and certificates from the commercial register according to § 1 para 1 of the Commercial Register Act are provided to D*** by the BMJ. The difference between the providers that allow access to the (official) commercial register and the respondent is that the respondent offers basic information regarding companies/societies free of charge and makes it visible through links in an "overlay" to the respective company. The "official" databases require registration and/or a small fee (e.g., auszug.at EUR 1.32) for direct person searches, which are offered as a query option. However, the fee for the person search is so low that it cannot be considered a barrier. The processing exclusively concerns the professional sphere of the complainant, who has decided to participate in economic life as a partner or managing director. Therefore, the complainant must be prepared from the outset for the observation of his behavior by a broad public and the disclosure of his relationships in economic life. Attached to the statement were, among other things, screenshots of the respondent's website and the commercial register.

6. The complainant did not express himself further within the provided timeframe despite the opportunity for parties to be heard.

B. Subject of the Complaint

The subject of the complaint is whether the respondent has violated the complainant's right to confidentiality.

C. Findings of Fact

1. The respondent holds, among other things, the business licenses "Advertising Agency" and "Direct Advertising and Address Business." The respondent operates a search platform on the website www.n***.at. Advertisements are also displayed on this website. The website presents itself as follows: [Note from the editor: The screenshot of the respondent's website reproduced here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed.]

2. The complainant is a partner and managing director of two companies (at the time of the decision, these are F*** GmbH and G*** GmbH).

3. There is no contractual relationship between the complainant and the respondent.

4. A direct name search ("Mag. Franz A****" or "Franz A****") of the complainant on the respondent's platform yields no results. When querying part of the company name of a company in which the complainant is also involved as a partner or managing director, the search results include, among other things, information about the acting persons of the company. The results are presented as follows:

[Note from the editor: The screenshot of the respondent's website reproduced here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed. The search result includes the name of the complainant, the role descriptions "Managing Director," "Private Individual," and "Authorized Representative," as well as the indication that the complainant is the sole partner of G*** GmbH ("Share 100.00%").]

5. Next to the complainant's name is an "i." This "i" indicates that there is additional information about the complainant. When the "i" is selected, an "overlay" appears. This is presented as follows:

[Note from the editor: The screenshot of the respondent's website reproduced here as a facsimile (graphic file) cannot be pseudonymized with reasonable effort and has therefore been removed.] In this "overlay," further "functions" of the complainant in other companies are visible.

6. The data listed during the query comes from D*** Economic Information Service Ltd. (which receives the data from the commercial register based on a contractual relationship with the Federal Ministry of Justice) and is made available to the respondent by this service.

Assessment of Evidence: The findings are based on the corresponding statements of the parties, the documents submitted by them, and an official investigation by the Data Protection Authority on the website www.n***.at (accessed on October 8, 2021).

D. From a legal perspective, it follows that:

The fundamental right to data protection enshrined in § 1 DSG, according to which everyone, particularly with regard to the respect for their private and family life, has a right to the confidentiality of their personal data, as long as there is a legitimate interest in protection, includes the protection of the affected individual against the collection of their data and the disclosure of the data collected about them. However, the fundamental right to data protection is not absolute and may be restricted by certain permissible interventions.

According to § 1 para. 2 DSG, restrictions on the right to confidentiality, insofar as the use of personal data does not occur in the vital interest of the data subject or with their consent, are only permissible to protect overriding legitimate interests of another party.

The data used by the respondent concerning the complainant originates from the commercial register. As the respondent correctly stated, the commercial register is public according to § 10 UGB and anyone is entitled to query the commercial register according to § 9 UGB.

However, to the extent that the respondent argued in this context that the data in question is already "generally available" and thus implies that it would not be subject to a confidentiality claim, it must be countered that the general assumption of the absence of a violation of worthy confidentiality interests for data that is lawfully published is not in accordance with European legal requirements (see the judgment of the CJEU of December 16, 2008, C-73/07 Satakunnan Markkinapörssi and Satamedia, see also the decision of the BVwG of July 29, 2020, GZ W211 2221963-1, and of February 25, 2021, GZ W274 2236016-1, as well as the decision of the Data Protection Authority of April 23, 2019, GZ D123.626/0006-DSB/2018).

If the respondent further claims that one can also find connections through a targeted person search in the commercial register and thus assumes that one might be dealing with a mere reproduction of "generally accessible data," they are mistaken, as the respondent recombines and links the commercial register data, thereby generating an informational added value, which means that in this context a new data use must be assumed, the permissibility of which must be examined according to the provisions of the DSG and the GDPR (see regarding the legal situation under the DSG 2000

Kotschy in Jahnel (ed.), Data Protection Law and E-Government Yearbook 2012, 27 [47], the decision of the BVwG of February 25, 2021, GZ W274 2238717-1, and the decision of the Data Protection Authority of January 15, 2019, GZ D123.527/0004-DSB/2018).

As a justification, in the present case – as correctly stated by the respondent – data processing based on overriding legitimate interests in the sense of § 1 para. 2 DSG or Art. 6 para. 1 lit. f GDPR is conceivable.

In this regard, an assessment of the legitimate interests of the complainant must be carried out and these must be weighed against the legitimate interests of the respondent (as well as possibly third parties). In the context of this balancing of interests, it must be taken into account that two cumulative conditions must be met for the respondent to rely on this permission provision: on the one hand, the processing must be necessary to protect the legitimate interests of the controller or a third party, and on the other hand, the fundamental rights and freedoms of the affected person (in this case: the complainant), which require the protection of personal data, must not outweigh (see the judgment of the CJEU of November 24, 2011, C-468/10 and C-469/10 [ASNEF and FECEMD] para. 38; see also the judgment of the CJEU of May 4, 2017, C-13/16 [Rīgas satiksme] para. 28).

In the context of the balancing of interests, it must be considered whether an affected person could reasonably foresee at the time of the collection of personal data and in light of the circumstances under which it occurs that processing for this purpose might take place. The weighting must be done from an objective perspective and not from the subjective perspective of individual affected persons; thus, individual feelings should not be taken into account (see Kastelitz/Hötzendorfer/Tschohl, op. cit. para. 51).

[Note by the editor: referring to Kastelitz/Hötzendorfer/Tschohl in Knyrim, DatKomm Art 6 GDPR, para. 51]

The respondent stated in this context that the complainant's data primarily serves their economic interest as well as the interest of participants in economic life to know which persons are involved in companies and what positions they hold in other companies. This allows a participant in economic life to better assess a potential contractual partner and, for example, recognize whether the person(s) behind the contractual partner as shareholders are still active in other companies or not. Since different companies also advertise on the platform, it is also in the interest of the respondent to generate as many users of the website as possible through interesting information provided there, in order to have as high a number of people on the website as possible, thereby generating advertising revenue.

Considering that due to their general availability, a lower degree of protection for the complainant's data is to be assumed, and that this data ultimately only pertains to the professional sphere of the complainant, who decides for themselves whether to participate in economic life as a shareholder or managing director, and therefore only a low intensity of interference is to be assumed overall, the Data Protection Authority concludes that the legitimate interests of the respondent in processing the complainant's data within the framework of their web service outweigh the interests of the complainant.

The complaint has proven to be unfounded and was therefore dismissed in accordance with § 24 para. 5 DSG.